

SENATE No. 1281

The Commonwealth of Massachusetts

PRESENTED BY:

John C. Velis

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to domestic violence reports and confidentiality.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>John C. Velis</i>	<i>Hampden and Hampshire</i>	
<i>Jason M. Lewis</i>	<i>Fifth Middlesex</i>	<i>2/28/2025</i>
<i>John F. Keenan</i>	<i>Norfolk and Plymouth</i>	<i>2/28/2025</i>
<i>Michael O. Moore</i>	<i>Second Worcester</i>	<i>4/3/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>6/16/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>7/25/2025</i>

SENATE No. 1281

By Mr. Velis, a petition (accompanied by bill, Senate, No. 1281) of John C. Velis, Jason M. Lewis and John F. Keenan for legislation relative to domestic violence reports and confidentiality. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1136 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to domestic violence reports and confidentiality.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 41 of the General Laws is hereby amended by inserting after section 97D the
2 following section:-

3 Section 97D½. (a) There shall be a task force established to complete a systematic review
4 of the laws pertaining to domestic violence and sexual assault reports and confidentiality. The
5 task force shall consist of: the attorney general or a designee; the president of the Massachusetts
6 District Attorneys Association or a designee; the colonel of the state police or a designee; the
7 executive director of Massachusetts office for victim assistance or a designee; 2 members
8 appointed by the senate president, 1 of whom shall represent domestic or sexual violence
9 programs in the Commonwealth, have experience working directly with survivors of domestic
10 and sexual violence, or be a survivor of domestic or sexual violence; 2 members appointed by

the speaker of the house of representatives, 1 of whom shall represent domestic or sexual violence programs in the Commonwealth, have experience working directly with survivors of domestic and sexual violence, or be a survivor of domestic or sexual violence; 1 member appointed by the minority leader of the senate; 1 member appointed by the minority leader of the house of representatives; and 2 persons appointed by the governor, 1 of whom shall represent domestic or sexual violence programs in the Commonwealth, have experience working directly with survivors of domestic and sexual violence, or be a survivor of domestic or sexual violence. The members of the task force shall appoint a chair.

(b) The task force shall: (i) assess the adequacy of laws pertaining to domestic violence, sexual assault, and confidentiality including, but not limited to, section 97D of chapter 41 of the General Laws; (ii) identify and review the impact of said section 97D; and (iii) develop recommendations to ensure confidentiality of domestic violence survivors without protecting perpetrators.

(c) The task force shall submit a report of its findings and legislative recommendations to the clerks of the senate and the house of representatives and the chairs of the joint committee on the judiciary not later than 18 months after the effective date of this act. The task force shall determine if subsequent reports shall be necessary to properly address this issue.